

TENTATIVE RULINGS

FOR: August 18, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Aida D. Nunez

25PR000136

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The matter is CONTINUED to September 15, 2026, at 8:30 a.m. in Dept. A to permit Applicant to provide sufficient notice of the hearing.

The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190,

1204-05.) Applicant failed to provide adequate notice of the hearing date. (See Code Civ. Proc. §§1005, subd. (b) and 1010.6, subd. (a)(3)(B).) The proof of service indicates that notice and the moving documents were mailed on July 30, 2026. However, July 22, 2026, was the last day to timely serve notice by mail of the August 18, 2026, hearing.

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In The Matter of The Bressler Irrevocable Trust

26PR000097

VERIFIED PETITION TO COMPEL TRUST ACCOUNTING; TO COMPEL ACCOUNTING OF ACTS OF ATTORNEY-IN-FACT; FOR BREACH OF FIDUCIARY DUTY AND SURCHARGE; FOR REMOVAL OF TRUSTEE; AND FOR DOUBLE DAMAGES UNDER PROBATE CODE § 859

APPEARANCE REQUIRED for case management hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Marylouise Avist v. Nathan Fite et al

25CV000794

MOTION FOR LEAVE OF COURT TO FILE A SECOND AMENDED COMPLAINT

TENTATIVE RULING: The Court appoints Daniel DeWeese as Special Administrator of the Estate of Marylouise Avist, exclusively for purposes of prosecuting the instant action, and in that capacity orders that he be substituted in as Plaintiff of record in this action.

The Motion is GRANTED IN PART. The request to deem the Second Amended Complaint filed is DENIED. Mr. DeWeese is GRANTED 10 Court days’ leave to file a Second Amended Complaint in substantially the same form as that attached as Exhibit 6 to the Declaration of Matthew Russell filed May 28, 2026.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL BACKGROUND

On April 15, 2025, Marylouise Avist commenced the instant action by filing a complaint asserting claims sounding in negligence and premises liability against the defendants. On April 23, 2025, Ms. Avist filed a First Amended Complaint (FAC). On April 10, 2026, Ms. Avist filed a Motion for Leave to File a Second Amended Complaint (April 10 Motion re: SAC), and set

hearing on that motion for May 13, 2026. On May 8, 2026, counsel for Ms. Avist filed a Notice informing the Court that Ms. Avist passed away on April 13, 2025. In light of this Notice, the Court continued, to August 18, 2026, the May 13, 2026, hearing on the April 10 Motion re: SAC. (See Minute Order of May 13, 2026.)

On May 28, 2026, a second Motion for Leave of Court to File a Second Amended Complaint (May 28 Motion re: SAC) was filed on behalf of Ms. Avist's Estate by purported successor in interest Daniel Deweese.

B. SUBSTITUTION OF PLAINTIFF

"On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.) "The court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." (Code Civ. Proc., § 377.33.) "The references [in Code Civ. Proc., § 377.33] to appointment of the successor in interest as a special administrator or guardian ad litem are intended to recognize that there may be a need to impose fiduciary duties on the successor to protect the interests of other potential beneficiaries." (Law Revision Commission Comments to Stats 1992 ch 178 § 20 (SB 1496).) "If the circumstances of the estate require the immediate appointment of a personal representative, the court may appoint a special administrator to exercise any powers that may be appropriate under the circumstances for the preservation of the estate." (Prob. Code, § 8540.)

The Court finds that Daniel DeWeese has satisfied the requirements of Code of Civil Procedure section 377.32. (See Declaration of Daniel DeWeese.) The Court further finds that immediate appointment of Mr. DeWeese as special administrator of the Estate of Marylouise Avist, for purposes of prosecuting the instant action, is necessary to preserve her claims, a putative asset of the Estate.

The Court, therefore, appoints Daniel DeWeese as Special Administrator of the Estate of Marylouise Avist, exclusively for purposes of prosecuting the instant action, and in that capacity orders that he be substituted in as Plaintiff of record in the action. (See Code Civ. Proc., § 377.33.)

C. MOTION TO FILE SECOND AMENDED COMPLAINT

1. The April 10 Motion re: SAC is MOOT

The Court finds, from the circumstances discussed above, and the redundant nature of the two pending motions, that the April 10 Motion re: SAC is MOOT.

2. The May 28 Motion re: SAC is GRANTED

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a).) Similarly, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

The Court finds that the moving papers satisfy the procedural requirements of California Rules of Court, rule 3.1324.

Good cause appearing, and no opposition having been filed, the Motion for leave to file the proposed SAC is GRANTED.

For file management reasons, the Court does not permit attachments to other filings to be deemed operative pleadings. Thus, the request that the proposed Second Amended Complaint be deemed filed is DENIED.

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Jeffrey Fallin v. Thomas Orlando et al

25CV002076

DEMURRER TO CROSS-COMPLAINANT

APPEARANCE REQUIRED

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In The Matter of Michelle N. Cardozo

26CV001350

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Daniel Edward Gobeil

23PR000345

FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR AND ATTORNEYS AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The December 03, 2026 Status Hearing Re: Final Distribution is therefore VACATED.

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Estate of Wayne Milton Fullner

26PR000157

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on August 18, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200.

Petitioner will need to submit Proposed order (DE-140) and Proposed letters (DE-150) for the Court's signature. The Clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Travelers Casualty Insurance Company of America et al v. Richard Lynn Cox et al

25CV002519

PLAINTIFF TRAVELERS CASUALTY INSURANCE COMPANY OF AMERICA'S MOTION TO COMPEL DEFENDANT'S RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND REQUESTS FOR PRODUCTION

TENTATIVE RULING: The motion is GRANTED, except the request for sanctions is DENIED. Defendants are ordered to serve, within 20 calendar days from Notice of Entry of Order, verified code-compliant responses without objection to the Subject Discovery (defined below). Plaintiff is directed to provide Notice of Entry of this Order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Travelers Casualty Insurance Company of America (“Plaintiff”) moves for an order compelling Defendants Richard Lynn Cox (“Cox”) and Cork Distributors, LLC (“Cork Distributors”) (collectively “Defendants”) to serve verified responses, without objection, to Plaintiff’s Form Interrogatories (Set One), Special Interrogatories (Set One), and Requests for Production of Documents (Set One) (collectively, “Subject Discovery”). Plaintiff further moves for an order that Defendants and their attorneys, David A. Poull and Shashini B. Gamage of the law firm Cannon & Nelms, P.C., pay the total sum of \$5,410.00, representing Plaintiff’s reasonable attorneys’ fees and costs incurred in bringing this motion.

If a party to whom interrogatories or requests for production of documents were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., §§ 2030.290, subds. (a)-(c), 2031.300, subds. (a)-(c).) All that need be shown in the moving papers is that a set of interrogatories or request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.)

Plaintiff submits evidence demonstrating that the Subject Discovery was properly propounded and timely responses were not served. (Declaration of Joshua E. Kirsch (“Kirsch Decl.”) at ¶¶ 2-5, 8, 11.) Thus, Defendants shall serve verified code-compliant responses, without objections. (Code Civ. Proc., §§ 2030.290, subd. (a)-(b), 2031.300, subd. (a)-(b).)

There is no Opposition on file by Cork Distributors.

Cox filed an Opposition, in which he requests that the Court (1) relieve him from the waiver of objections, (2) if the Court is inclined to impose sanctions, to direct them solely to Cox’s former counsel only, and (3) grant 32 days (until September 6, 2026) to provide responses. Cox’s Opposition is based on issues regarding the association/substitution of Cox’s current counsel. To summarize, Defendants’ joint counsel of record from filing their Answer on January 12, 2026 until June 30, 2026 was Attorneys David A. Poull and Shashini B. Gamage of Cannon & Nelms, P.C. On June 30, 2026, an Association of Attorneys was filed, which, as Cox clarifies in Opposition, substituted Attorney Ryan W. Alley in as counsel of record for Cox, while Attorneys Poull and Gamage continued, and continue, to serve as counsel of record for Cork Distributors.

The Subject Discovery was propounded on Defendants February 3, 2026 (Kirsch Decl., ¶ 2.) Extensions until April 6, 2026, May 6, 2026, and June 4, 2026 were granted upon Defendants’ counsel’s requests made on March 5, 2026, April 6, 2026, and May 5, 2026, respectively. (*Id.*, ¶¶ 3-5.) Between May 26, 2026 and June 15, 2026, Plaintiff’s counsel reached

out to Defendants’ counsel no less than four times to understand whether or not new counsel would be substituting in, of which topic Plaintiff’s counsel was aware from the May 13, 2026 Case Management Conference. (*Id.*, ¶¶ 7-10, Exh. I.) Plaintiff’s counsel’s requests for information were met with silence. (*Ibid.*)

Cox’s Opposition describes innerworkings between his present and former counsel from shortly after the Answer was filed in January 2026 until the Association of Attorneys was filed on June 30, 2026, in an attempt to explain that Cox’s legal representation was in flux during that time. Cox offers no explanation for why, during that timeframe, his former counsel did not respond to Plaintiff’s counsel’s inquiries regarding the status of the Defendants’ representation or why his current counsel did not, at the very least, informally reach out to Plaintiff’s counsel to identify himself in light of the anticipated formal substitution and apparent difficulties in formally associating in as counsel. Had Cox’s current counsel done so, he perhaps would have become aware of the outstanding discovery.

The Court does not find that these circumstances warrant relief from Cox’s waiver of objections. Nor did Cox properly request such relief. (See §§ 2030.290, subd. (a)(1)-(2), 2031.300, subd. (a)(1)-(2).) These circumstances warrant granting Cox until September 6, 2026 to provide substantive responses. While these circumstances might support Cox’s request that the sanctions be directed solely at Cox’s former counsel, this request appears moot, as Plaintiff does not request sanctions against Cox’s current counsel. Moreover, Plaintiff’s request for sanctions is DENIED for failure to properly notice the request, as Plaintiff fails to provide any authority for the sanctions in its Notice of Motion. (See Rules of Court, rule 2.30(c).) Moreover, Plaintiff’s Memorandum fails to state or discuss the authority upon which its sanctions request is based.

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In The Matter of Jane Marie Dumas

26CV001359

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.